

**IN THE HIGH COURT FOR THE STATES OF PUNJAB AND HARYANA
AT CHANDIGARH**

CRWP No._____ of 2018

**ANKIT GREWAL, ADVOCATE AS A NEXT BEST FRIEND OF ADVOCATE SUDHA
BHARADWAJ (DETENUE)**

...Petitioner

Versus

STATE OF HARYANA and Others

...Respondents

Total Court Fee Rs._____

CHANDIGARH

DATED: 28/08/2018

(RS BAINS) (ARJUN SHEORAN) (NEHA SONAWANE)

[Redacted Signature Block]

CRIMINAL WRIT PETITION UNDER ARTICLES 226 & 227 OF THE
CONSTITUTION OF INDIA FOR ISSUANCE OF A WRIT IN THE
NATURE OF HABEAS CORPUS AND/OR ANY OTHER APPROPRIATE
WRIT OR ORDER ISSUE A WRIT ORDER OR DIRECTION IN THE
NATURE OF HABEAS CORPUS DIRECTING THE RESPONDENTS TO
IMMEDIATELY SET THE DETENUE AT LIBERTY;

ISSUE A WRIT ORDER OR DIRECTION IN THE NATURE OF
MANDAMUS DIRECTING THE DETENUES NOT TO ARREST THE
DETENUE WITHOUT PRIOR NOTICE ENABLING HIM TO SEEK
APPROPRIATE REMEDIES

DIRECTING THE RESPONDENTS TO PRESENT THE DETENUE
BEFORE THIS HON'BLE COURT AND/OR SET HER FREE;

AND

ISSUE A WRIT, ORDER OR DIRECTION, IN THE NATURE OF
HABEAS CORPUS DIRECTING THE APPROPRIATE OFFICIALS,
INCLUDING DISTRICT MAGISTRATE, FARIDABAD, TO LOCATE
THE DETENUE AND SET HER FREE FROM THE ILLEGAL CUSTODY
;

AND

ISSUE A WRIT IN THE NATURE OF HABEAS CORPUS AND/OR ANY
OTHER APPROPRIATE WRIT OR ORDER TO KINDLY ENSURE THE
RELEASE OF THE DETENUE I.E. THE PRESENT PETITIONER FROM
THE ILLEGAL CUSTODY OF THE RESPONDENT POLICE OR FROM
THE ILLEGAL CUSTODY FROM ANY OTHER PERSON

AND

ISSUE AN APPROPRIATE WRIT OR ORDER OR DIRECTION
APPOINTING AN INDEPENDENT COMMISSION/LOCAL
COMMISSIONER(S) UNDER ARTICLE 226 OF THE CONSTITUTION
OF INDIA READ WITH ORDER 26 OF THE CIVIL PROCEDURE CODE,
1908;

AND

AND

IT IS FURTHER PRAYED THAT WRIT PETITION MAY KINDLY BE
ALLOWED.

AND

ANY OTHER SUITABLE WRIT OR DIRECTION WHICH THIS
HON'BLE COURT MAY DEEMS FIT AND PROPER IN THE FACTS
AND CIRCUMSTANCES OF THIS CASE MAY KINDLY BE PASSED.

AND

DISPENSE WITH THE FILING OF CERTIFIED/LEGIBLE
COPIES/FAIR/UNMARKED/PROPER LEFT HAND SPACE/DOUBLE
SPACE/VERNACULAR COPIES OF ANNEXURES;

AND

DISPENSE WITH THE SERVICE OF ADVANCE NOTICES TO THE
RESPONDENTS;

AND

DISPENSE WITH THE VAKALATNAMA AND AFFIDAVITS TO BE
FILED WITH THE PETITION ;

INTERIM PRAYER

**DURING THE PENDENCY OF THE PRESENT PETITION, THE
REMAND ORDER OF THE DETENUE MAY KINDLY BE STAYED AND
SHE MAY BE ALLOWED TO STAY AT HER HOUSE UNDER POLICE
SUPERVISION**

RESPECTFULLY SHOWETH:

1. That the Petitioner is a citizen of India and, is entitled to invoke the extraordinary writ jurisdiction of this Hon'ble Court.
2. That the petitioner is an Advocate practicing in the High Court of Punjab and Haryana.
3. The detainee is a citizen of India and a Advocate, human rights activist and a Visiting Faculty at the National Law University, Delhi. She is the National Vice President of the Peoples Union for Civil Liberties. The detainee has been a member of several committees and has been internationally recognized for her contributions to the cause of the marginal and downtrodden section of the society. She is outspoken with regards to her views regarding the actions of the present government and has articulated the same multiple public and social media platforms.
4. In what appears to be a witch hunt for unsympathetic political views the Maharashtra Police Officials came early morning on 28th August 2018 to her home at Badarpur border in State of Haryana under the jurisdiction of P.S Surajkund where she is staying with her daughter.
5. That the documents given to the detainee are in Marathi language which is not known to the Detenue. There is no compliance with the requirements of Sections 165 and 166 CrPC inasmuch as the documents are in Marathi, a

language which the detainee does not know, thus are unable to read its contents. Furthermore, neither the grounds nor the purpose of conducting the search, supposed to be made in writing by the searching officer in terms of Section 165(1) have been made available to the Detainee and the remaining occupants of the premises under search, after a copy thereof has been forwarded to the nearest magistrate. A true copy of the documents supplied by the Respondent police is annexed herewith as **Annexure P-1**.

6. An FIR No.4/2018 P.S. Vishrambagh Pune has been shown to the detainee regarding a cultural program held on 31/12/2017, mentioning Sections 153A, 505, 117 read with S.34 IPC. The same does not even contain the detainee's name, rightly so because she was not even present at this cultural meeting. The detainee was not even present at the meeting. Furthermore, the officers conducting the search seem to have, at their own behest, added certain provisions of the Unlawful Activities Prevention Act, 1967 in the search warrant. Notably, Sections 13 and 18 of the UAPA have been added. It is therefore possible that the officers conducting the search have added these provisions purely for the purpose of preventing any application for anticipatory bail. Hence, this Writ Petition as any form of detention without any probable cause or reasonable grounds would amount to illegal/preventive detention.

7. The search has not yielded any objectionable material, yet the detainee, who has been detained and kept under preventive custody and has been arrested. In fact, they have effectively detained her and restricted her movements to the extent of not allowing her to even use her phone. The occupants of the house have been forced to switch off their phones, in flagrant violation of

Constitutional, Fundamental and Human Rights, as well as established principles and protocol of search and seizure.

8. The designation of the officers conduct the search is not being informed to the detainee.
9. That it is pertinent to mention that another activist, namely Sh. Gautam Navlakha was illegally detained in New Delhi in the same matter. A habeas corpus petition was filed on his behalf before the Hon'ble Delhi High Court, vide WP (Cri) 2559 of 2018 and vide an order dated 28/08/2018 passed by the Division Bench of Justice S. Murlidhar and Vinod Gupta, the remand order passed by the jurisdictional court was stayed till tomorrow. A copy of the petition filed in Delhi is annexed herewith as ANNEXURE P-2. The Hon'ble Court has allowed Sh. Navlakha to stay at his house till then under house arrest and will be hearing the petition tomorrow.
10. This is clearly an assault on liberals, liberal thinking and a motivated act. There is no ground for detention or restriction of movement. The actions are illegal and unconstitutional. Yet the detainee has extended all possible cooperation to the searching officers, even in these circumstances.
11. The detainee is entitled to a protection of his life and liberty by an appropriate Writ/order or direction by this court.

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GROUND

12. That aggrieved by the aforesaid illegal, arbitrary, unconstitutional conduct and action of the Respondents, the present writ is being preferred before the Hon'ble court inter-alia, upon the following grounds:

- A. BECAUSE the detenue has been illegally detained and not in accordance with law.
- B. BECAUSE the actions of the respondents have been arbitrary, illegal and unjust;
- C. BECAUSE the actions of the respondents infringe the detenue's right to life under Article 21 of the Constitution of India;
- D. BECAUSE the actions of the respondents infringe the detenue's right to life under Article 21 of the Constitution of India;
- E. BECAUSE grave and manifest injustices have been done to the petitioner and thus infringe upon his fundamental rights under Article 14 and 21 of the Constitution.
- F. The petitioner seeks leave to urge any other Grounds at the time of hearing of the present matter.

QUESTIONS OF LAW

13. That the following questions of law arise in this writ petition for the kind consideration of this Hon'ble Court:

- I. Whether the actions of the respondents have been arbitrary, illegal and unjust?
- II. Whether the actions of the respondents infringe the detenue's right to life under Article 21 of the Constitution of India?

III. Whether grave and manifest injustices have been done to the detainee and thus infringe upon his fundamental rights under Article 14 and 21 of the Constitution?

IV. Whether the actions of the respondents infringe the detainee's right to life under Article 21 of the Constitution of India?

V. Whether grave manifest injustices have been done to the petitioner?

14. That the petitioner has been left with no other alternative remedy of appeal/revision except to approach this Hon'ble Court by way of filing the present writ petition under Article 226/227 of the Constitution of India.

15. That the petitioner is not in immediate possession of certified/legible copies/fair/unmarked/proper left hand space/double space copies of Annexures annexed with the instant petition. However, true typed copies and clear/legible photocopies of the same are being annexed with the present petition for the kind consideration of this Hon'ble Court. Therefore, filing of certified/legible copies of Annexures annexed with the instant petition may kindly be dispensed with and true typed copies thereof may kindly be taken on record, in the interest of justice, equity and fair play.

16. That the petitioner has not filed any such or similar petition in this Hon'ble Court or in the Hon'ble Supreme Court of India.

PRAYER

The petitioner humbly prays for the following reliefs:

- I. Issue a writ order or direction in the nature of Habeas Corpus directing the respondents to immediately set the detainee at liberty;
- II. Issue a writ order or direction in the nature of mandamus directing the detainees not to arrest the detainee without prior notice enabling him to seek appropriate remedies

- III. ISSUANCE OF A WRIT IN THE NATURE OF HABEAS CORPUS AND/OR ANY OTHER APPROPRIATE WRIT OR ORDER DIRECTING THE RESPONDENTS TO PRESENT THE DETENUE BEFORE THIS HON'BLE COURT AND/OR SET THEM FREE;
- IV. ISSUE A WRIT, ORDER OR DIRECTION, IN THE NATURE OF HABEAS CORPUS DIRECTING THE APPROPRIATE OFFICIALS, INCLUDING DISTRICT MAGISTRATE, FARIDABAD, TO LOCATE THE DETENUE AND SET HER FREE FROM THE ILLEGAL CUSTODY ;
- V. ISSUE A WRIT IN THE NATURE OF HABEAS CORPUS AND/OR ANY OTHER APPROPRIATE WRIT OR ORDER TO KINDLY ENSURE THE RELEASE OF THE DETENUE I.E. THE PRESENT PETITIONER FROM THE ILLEGAL CUSTODY OF THE RESPONDENT POLICE OR FROM THE ILLEGAL CUSTODY FROM ANY OTHER PERSON
- VI. ISSUE AN APPROPRIATE WRIT OR ORDER OR DIRECTION APPOINTING AN INDEPENDENT COMMISSION/LOCAL COMMISSIONER(S) UNDER ARTICLE 226 OF THE CONSTITUTION OF INDIA READ WITH ORDER 26 OF THE CIVIL PROCEDURE CODE, 1908;
- VII. IT IS FURTHER PRAYED THAT WRIT PETITION MAY KINDLY BE ALLOWED.
- VIII. ANY OTHER SUITABLE WRIT OR DIRECTION WHICH THIS HON'BLE COURT MAY DEEMS FIT AND PROPER IN THE FACTS AND CIRCUMSTANCES OF THIS CASE MAY KINDLY BE PASSED.
- IX. DISPENSE WITH THE FILING OF CERTIFIED/LEGIBLE COPIES/FAIR/UNMARKED/PROPER LEFT HAND SPACE/DOUBLE SPACE COPIES/VERNACULAR OF ANNEXURES;
- X. DISPENSE WITH THE SERVICE OF ADVANCE NOTICES TO THE RESPONDENTS;

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DATED: 28/08/2018

(RS BAINS) (ARJUN SHEORAN) (NEHA SONAWANE)

[REDACTED]